



**U.S. Customs and
Border Protection**

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PUBLIC VERSION

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RE: EAPA Cons. Case No. 7888 – Notice of Determination as to Evasion

To the Counsels for the above-referenced entities:

Pursuant to an examination of the record in Enforce and Protect Act (EAPA) Consolidated Investigation 7888, U.S. Customs and Border Protection (CBP) has determined there is substantial evidence that U.S. Atlanta International Inc. (U.S. Atlanta), Global Source & Supply, Inc. (Global Source) and Cosmos Granite (West), LLC (Cosmos West) (collectively, the Importers) entered merchandise covered by antidumping (AD) and countervailing (CVD) duty orders A-570-084 and C-570-085 on quartz surface products (QSP) from the People's Republic of China (China) (collectively, the *AD/CVD Orders*)¹ into the customs territory of the United States through evasion. Substantial evidence demonstrates that the Importers evaded the

¹ See *Certain Quartz Surface Products from the People's Republic of China: Antidumping and Countervailing Duty Orders*, 84 Fed. Reg. 33053 (Dep't Commerce July 11, 2019) (*AD/CVD Orders*).

AD/CVD Orders by importing QSP from China that had been transshipped through Thailand. The Importers failed to declare that the QSP was subject to the *AD/CVD Orders* upon entry and, as a result, no cash deposits were applied to the merchandise at the time of entry. For the fourth importer subject to this investigation, Cosmos Granite (East) Marble (Cosmos East), CBP finds that there is not substantial evidence on the record that demonstrates Cosmos East entered Chinese-origin QSP into the United States that were transshipped through Thailand during the period covered by this EAPA investigation.

Pursuant to the *AD/CVD Orders*, the covered merchandise is described in the scope as follows:

The scope of the orders covers certain QSP.^{2*} QSP consist of slabs and other surfaces created from a mixture of materials that includes predominately silica (*e.g.*, quartz, quartz powder, cristobalite) as well as a resin binder (*e.g.*, an unsaturated polyester). The incorporation of other materials, including, but not limited to, pigments, cement, or other additives does not remove the merchandise from the scope of the orders. However, the scope of the orders only includes products where the silica content is greater than any other single material, by actual weight. QSP are typically sold as rectangular slabs with a total surface area of approximately 45 to 60 square feet and a nominal thickness of one, two, or three centimeters. However, the scope of the orders includes surface products of all other sizes, thicknesses, and shapes. In addition to slabs, the scope of the orders includes, but is not limited to, other surfaces such as countertops, backsplashes, vanity tops, bar tops, work tops, tabletops, flooring, wall facing, shower surrounds, fireplace surrounds, mantels, and tiles. Certain QSP are covered by the orders whether polished or unpolished, cut, or uncut, fabricated or not fabricated, cured or uncured, edged or not edged, finished or unfinished, thermoformed or not thermoformed, packaged or unpackaged, and regardless of the type of surface finish.

In addition, QSP are covered by the orders whether or not they are imported attached to, or in conjunction with, non-subject merchandise such as sinks, sink bowls, vanities, cabinets, and furniture. If QSP are imported attached to, or in conjunction with, such non-subject merchandise, only the QSP is covered by the scope.

Subject merchandise includes material matching the above description that has been finished, packaged, or otherwise fabricated in a third country, including by cutting, polishing, curing, edging, thermoforming, attaching to, or packaging with another product, or any other finishing, packaging, or fabrication that would not otherwise remove the merchandise from the scope of the orders if performed in the country of manufacture of the QSP.

² QSP may also generally be referred to as engineered stone or quartz, artificial stone or quartz, agglomerated stone or quartz, synthetic stone or quartz, processed stone or quartz, manufactured stone or quartz, and Bretonstone. Note: This footnote is original the scope of the *AD/CVD Orders*.

I. Background & Procedural History (Pre-Interim Measures)

Allegation and Initiation

On January 18, 2024, Cambria Company LLC (Alleger) filed EAPA allegations against the Importers,³ and on February 16, 2024, the Trade Remedy Law Enforcement Directorate (TRLED), within CBP's Office of Trade, acknowledged receipt of the properly filed Allegations.⁴ CBP determined that the Allegations reasonably suggested that the Importers and Cosmos East evaded the *AD/CVD Orders* by importing QSP from China into the United States that was transshipped through Thailand and failed to declare that the QSP was, in fact, from China.⁵ As a result, CBP initiated an investigation pursuant to Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015, commonly referred to as EAPA on March 11, 2024.⁶

The Alleger claimed that [Name] shipment data suggested that the Importers received artificial stone (QSP) shipments classified under HTS 6810.99 from Elite Stonetech located at 27/10 Moo 8, Tambon Surasak, Amphoe Siracha, Chang Wat Chonburi 20110, Thailand (27/10 Moo 8) since January 2022, before the production site was operational.⁷

In supporting Elite Stonetech's production capabilities, the Alleger [Source Action

].⁸ [Source Observation

].⁹ The Alleger maintained that Elite Stonetech's website included a photograph of its facility at the Chonburi address with the company's signage on the entry gates; however, it is unknown when this photograph was taken.¹⁰ Elite Stonetech's signage is not displayed in photographs from Google that were taken in February 2019; in a second photo dated June 2022, there is a tiny sign on the gate that says "Elite Stonetech" in front of a larger sign that states "Pro-Care" written on the building itself.¹¹ Additionally, the Alleger stated that [Source Observation

³ See January 18, 2024, four letters from the Alleger: (1) "Quartz Surface Products from the People's Republic of China: Request for an Investigation under the Enforce and Protect Act of U.S. Atlanta International Inc." (EAPA 7888-U.S. Atlanta Allegation), (2) "Quartz Surface Products from the People's Republic of China: Request for an Investigation under the Enforce and Protect Act of Global Source & Supply Inc." (EAPA 7909-Global Source Allegation), (3) "Quartz Surface Products from the People's Republic of China: Request for an Investigation under the Enforce and Protect Act of Cosmos Granite (East) LLC." (EAPA 7910-Cosmo East Allegation), and (4) "Quartz Surface Products from the People's Republic of China: Request for an Investigation under the Enforce and Protect Act of Cosmos Granite (West) LLC." (EAPA 7911-Cosmo West Allegation) (collectively, the *Allegations*).

⁴ See CBP email, "EAPA Cases 7888, 7909, 7910 and 7911— Official Receipt of Properly Filed Allegations," dated February 16, 2024.

⁵ See 19 C.F.R. § 165.2.

⁶ See CBP Memorandum, "Initiation of Investigation for EAPA 7888, 7909, 7910 and 7911 (Consolidated Case 7888 (Cons. 7888))," dated March 11, 2024 (Initiation Notice).

⁷ See *Allegations* at Exhibits 3 and 10 for the import data.

⁸ *Id.* at 8-9.

⁹ *Id.* at 8 and Exhibit 6.

¹⁰ *Id.* at 8 and Exhibit 7.

¹¹ *Id.* at 9 and Exhibit 9.

import data lists Elite Stonetech as the shipper for several shipments of QSP to the Importers.¹³ Meanwhile, the [Name]

[Source Observation

]. However, [Source Observation

].¹⁴ [

Source Observation

]¹⁵ [Source Action and Validation

].¹⁶

However, [Action and Validation

].¹⁷ [Company's action

].¹⁸

The Allegor claimed that this evidence reasonably suggests that Elite Stonetech was transshipping Chinese QSP to the United States via Thailand.

The Allegation provided a printout of Elite Stonetech's website, showing that the company advertises itself as "a professional Artificial Stone manufacturer and supplier in Thailand" that has "two Quartz slab produce lines, counter-tops factories, and experienced local employees" that are able to offer "various kinds of Quartz Slabs and Countertops to all over the world." Elite Stonetech also states that it is "focused on requirements from the United States."¹⁹

As for the establishment of Elite Stonetech's facility, the Allegor provided documents from the Department of Business Development of the Thailand Ministry of Commerce indicating that Elite Stonetech was registered as a "Company Limited" on September 5, 2019, and is owned by a Chinese national with a 49% stake.²⁰ The Allegor also pointed out that the establishment of this company occurred just two months after the publication of the *AD/CVD Orders* on QSP from China, and that 49% of the company's total shares is the maximum allowable foreign ownership to avoid prohibitions and restrictions applicable to majority foreign-owned companies under Thai law.²¹

The Allegor also provided evidence of a link between Elite Stonetech and a Chinese QSP manufacturer, named Kung Fu Stone, based in Xiamen province, China.²² Specifically, Kung Fu

¹² *Id.* at 8-9.

¹³ *Id.*

¹⁴ *Id.* at Exhibit 6.

¹⁵ *Id.*

¹⁶ *Id.*

¹⁷ *Id.*

¹⁸ *Id.* at Exhibit 6.

¹⁹ *Id.* at 7 and Exhibit 7.

²⁰ *Id.* at 8 and Exhibit 8.

²¹ *Id.* at 7-8.

²² *Id.* at 10-11 and Exhibit 11.

Stone publicly published on its website statements implying that its products or products from other Chinese QSP producers can be purchased from Elite Stonetech in Thailand.²³

“Do you want to import from China, but have problems with anti-dumping and high tariffs? Are you troubled by not finding reliable quartz suppliers and manufacturers? So, let us give you some inspiration and help through this article. Many famous Chinese quartz stone manufacturers and exporters have already begun to prepare to transfer their business to Thailand. In this way, customers can also enjoy fast delivery times and excellent quality. Quartz stone factories in China are famous for their fast delivery times. Meanwhile, Indian suppliers are often criticized for having slow deliveries. Then, if you are going to find a supplier from Thailand, you must also focus on the delivery time. Of course, some Chinese quartz slabs factories always have fast delivery times in Thailand too. With the development of the trade war between the United States and China, many American quartz importers cannot source directly from China. In 2018, the amount of quartz stone imported by the United States from China plummeted. So, why do many people still see a lot of Chinese quartz products in the US market? Of course, competition and friction between countries will always affect the development of enterprises. However, new approaches will always emerge as difficulties arise. So, if you can’t import quartz stone directly from China, then Thailand, and Vietnam are very good choices.”²⁴

The Alleger maintained that, in the above statements on its website, Kung Fu Stone is careful not to specifically say Chinese QSP are being transshipped through Thailand.²⁵ The Alleger also maintained that Kung Fu Stone’s statements strongly imply that transshipment is happening, *i.e.*, to avoid paying the AD/CVD duties on Chinese-origin QSP with fast delivery times.²⁶ Notably, Elite Stonetech is specifically named as a Thai supplier of QSP on Kung Fu’s website.²⁷

According to the allegations, Kung Fu Stone has also published on its website that “transshipment” of QSP “does exist” and “is not a minority” as a practice to change the country of origin, naming Taiwan, Malaysia, Thailand, Vietnam, and the Philippines as “common transit ports” that transship QSP from China to the United States.²⁸ Additionally, the Alleger highlights that Chinese QSP remain subject to the *AD/CVD Orders* even if further finishing, packaging, or fabrication takes place in a third country (in this case, Thailand) before it is shipped to the United

²³ *Id.* at 10-11.

²⁴ *Id.*

²⁵ *Id.*

²⁶ *Id.*

²⁷ *Id.* at 10 and Exhibit 11. Elite Stonetech’s mention on a Chinese QSP producer’s website bragging about the benefits of transshipment in avoiding duties is combined with the fact that [[Source Validation](#)].

²⁸ *Id.* at 11 and Exhibit 11. The complete statement from the website indicates: “3.3 Transshipment of goods, change of origin: We do not know the legality of this matter, but it does exist, and it is not a minority. For example, there with lots of Chinese Quartz Suppliers who export quartz slabs to Taiwan, then repackage, change the place of production, and export to the United States under the name of Taiwan-made quartz stone. In this way, customers will not be troubled by high tariffs.”

States.²⁹ According to the Alleger, this information rises to the level of reasonable suspicion that the Importers are evading the *AD/CVD Orders* on QSP imports from Elite Stonetech.³⁰

The Alleger further elaborated on the fact that imports of QSP from China are subject to AD duties of between 255.27 percent (%) and 326.15% and CVD duties of between 45.32% and 190.99%.³¹ Given these high AD/CVD rates, the Alleger stated it is doubtful that the Importers properly designated their imports as subject to the *AD/CVD Orders* and paid combined AD/CVD duties of roughly 300% to 400%.³² Due to the high AD/CVD rates, the Alleger stated that it is highly doubtful the Importers and Cosmos East properly designated their imports as subject to the *AD/CVD Orders*.³³

Therefore, the Alleger established that all of the above-mentioned evidence, reasonably suggests that the Importers and Cosmos East are transshipping Chinese-origin QSP through Thailand and failed to declare the correct country of origin to avoid paying the duties as per the *AD/CVD Orders*.

CBP Issued CBP Form 28 (CF-28) Requests for Information

TRLED initiated this investigation on March 11, 2024. On March 29, 2024, CBP issued nine CF-28s to the Importers and Cosmos East, requesting the supporting entry summary documents for the entries listed in the below table.³⁴

Table 1. List of Entries for CF-28

Importer Name	Entry Number	Entry Date	HTS Number	Country of Origin Name
Cosmos Granite (East) LLC	[No. 19638 (entry 9638)	2/16/2023	6810990040	THAILAND
Cosmos Granite (West) LLC	[No. 13499 (entry 3499)	2/28/2023	6810990040	THAILAND
Cosmos Granite (East) LLC	[No. 18025 (entry 8025)	2/27/2024	6810990040	THAILAND
Cosmos Granite (East) LLC	[No. 10781 (entry 0781)	3/28/2024	6810990040	THAILAND
US Atlanta International Inc	[No. 18676 (entry 8676)	5/23/2023	6810990080	THAILAND
US Atlanta International Inc	[No. 12116 (entry 2116)	5/31/2023	6810990040	THAILAND
US Atlanta International Inc	[No. 14914 (entry 4914)	7/5/2023	6810990080	THAILAND
Global Source & Supply Inc	[No. 15420 (entry 5420)	2/21/2023	6810990020	THAILAND
Global Source & Supply Inc	[No. 19554 (entry 9554)	5/19/2023	6810990040	THAILAND

Specifically, CBP requested the following information in the CF-28s: (1) entry summary supporting documents to include a commercial invoice, Bill of Lading (BOL), Purchase Order (PO), packing list, freight invoice, proof of payment (*i.e.*, wire transfers, canceled checks, bank statement, *etc.*), (2) the QSP production records to include the dated transportation document

²⁹ *Id.*

³⁰ *Id.*

³¹ *See AD/CVD Orders.*

³² *See Allegations at 12.*

³³ *Id.*

³⁴ *See CF-28 Requests for Information on entries 9638, 3499, 8025, 0781, 8676, 2116 and 4914, dated March 29, 2024; see also CF-28 Request for Information on entries 5420 and 9554, dated April 3, 2024.*

from the manufacturer and supplier to the loading port and from the foreign port to the U.S. port of entry, (3) a list of raw materials to produce the QSP to include the supplier commercial invoice for each raw material and the dated receipt with a signature of receipt for the raw materials, (4) the foreign customs clearance documentation if raw material(s) are imported, (5) a demonstration of how the manufacturer ties the raw material to the finished product, (6) a flow chart of the production process that explains clearly what raw materials are used at each step, (7) a list of all the equipment used on site in producing QSP, along with the description of each equipment function and its capacity to produce for each stage, and photographs of all production machinery and equipment, (8) a list of employees for the QSP manufacturer, and (9) a copy of the business registration or articles of incorporation and physical address location of the QSP manufacturer and its mailing address.³⁵

CF-28 Responses for Entries 9638, 0781 and 8025—Cosmos East

On April 13, 2024, and April 24, 2024, CBP received the CF-28 responses for entry 9638 pertaining to container no. [Code].³⁶ The documents submitted included a commercial invoice from [Name] to Cosmos East-BNA at 278 Mason Road, Laverne, TN 37086, dated December 8, 2022 for 60 pieces artificial stone total value of \$[No.].³⁷ On May 5, 2024, CBP received the CF-28 response for entry 0781 pertaining to container no. [Code]³⁸ and the CF-28 response for entry 8025 pertaining to container no. [Code].³⁹ The importer submitted similar information for each entry: including raw material inventory lists for [Name] (Supplier3) located at [location].⁴⁰

Even with all the documents provided, the CF-28 responses for these three Cosmos East entries were incomplete.⁴¹ Question 5 specifically requested “a demonstration of how the manufacturer ties the raw material to the finished product.” None of documents for all three of the entries that Cosmos East responded to tied the raw material invoices to the finished product that the Thailand supplier shipped to the United States.⁴² Generally, the documents provided showed purchases of raw materials but not where or how those raw materials were used in production and if those raw materials were used to make the QSP imported by Cosmos East in those entries.⁴³ Without this information, CBP was unable to determine that Thailand was the true country of origin for these entries.

CF-28 Responses for 5420—Global Source

³⁵ *Id.*

³⁶ See April 13, 2024, Cosmos East CF-28 response for entry 9638 (Entry 9638 CF-28 Response).

³⁷ *Id.*

³⁸ See May 5, 2024, Cosmos East CF-28 Response for entry 0781 (Entry 0781 CF-28 Response).

³⁹ See May 5, 2024, Cosmos East CF-28 Response for entry 8025 (Entry 8025 CF-28 Response).

⁴⁰ *Id.*

⁴¹ See Entry 9638 CF-28 Response, Entry 0781 CF-28 Response, and Entry 8025 CF-28 Response.

⁴² *Id.*

⁴³ *Id.*

Global Source’s CF-28 response for entry 5420 was received on April 30, 2024.⁴⁴ The documents submitted include the PO no. [Code], dated September 23, 2022, for Elite Stonetech, proof of payment for \$[No.] dated September 27, 2022, arrival notice for container no. [Code], an Elite Stonetech commissioning test run sheet dated October 25, 2022, an Elite Stonetech trial polishing report dated October 26, 2022, an Elite Stonetech production flow report dated November 22, 2022, Thai Ministry of Commerce certificate of origin dated February 3, 2023, a production flow chart with black and white photos of machines, an employee list, and raw materials invoices and sale contracts for materials such as quartz grits, resin, and titanium dioxide.⁴⁵

Even with all the documents provided, the CF-28 response for this entry was incomplete because Global Source failed to provide all the requested documents.⁴⁶ Question 1 of the CF-28 asked for entry summary supporting documents to include a commercial invoice, Bill of Lading (BOL), Purchase Order (PO), packing list, freight invoice, proof of payment (*i.e.*, wire transfers, canceled checks, bank statement, *etc.*); however, Global Source did not provide a sales invoice, packing list, or bill of lading for this entry.⁴⁷ Again, question 5 of the CF-28 specifically requested “a demonstration of how the manufacturer ties the raw material to the finished product.”⁴⁸ Certain documents provided indicated there was a production process, but Global Source did not tie sales documents, because there weren’t any, to the production worksheets to the finished product shipped to the United States.⁴⁹ Global Source also did not tie the raw material invoices it supplied to any finished products, as requested.⁵⁰ Therefore, CBP could not be certain from the CF-28 response that Elite Stonetech made the products that Global Source entered. The gap in information meant that CBP was unable to determine that Thailand was the true country of origin for these entries.

CF-28 Responses for 9554— Global Source; 3499—Cosmos West; and 8676, 2116, and 4914—U.S. Atlanta

As of May 31, 2024, CBP had not received any CF-28 response from Cosmos West for entry 3499 nor from Global Source for entry 9554.⁵¹ The manufacturer declared to CBP for these entries is Elite Stonetech. Similarly, CBP had not received any responses from U.S. Atlanta’s CF-28s for entries 8676, 2116 and 4914.⁵² Elite Stonetech is the manufacturer declared to CBP for entries 8676 and 2116, while entry 4914 declared [Name] as the manufacturer. Accordingly, for these five entries, the importers did not provide any evidence substantiating that the QSP was produced in Thailand. Importers Cosmos West and U.S. Atlanta

⁴⁴ See April 30, 2024, Global Source CF-28 response for entry 5420 (Entry 5420 CF-28 Response).

⁴⁵ *Id.*

⁴⁶ *Id.*

⁴⁷ *Id.*

⁴⁸ *Id.*

⁴⁹ *Id.*

⁵⁰ *Id.*

⁵¹ See CF-28 Requests for Information on entries 3499 and 9554, dated March 29, 2024.

⁵² See CF-28 Requests for Information on entries 8676, 2116 and 4914, dated March 29, 2024.

completely failed to comply with CBP's CF-28 requests for information.⁵³ Without this information, CBP was unable to determine that Thailand was the country of origin for these entries.

CBP Trade Data

CBP reviewed its trade data to validate the Alleger's claim of QSP being exported from Elite Stonetech before its production site was operational. CBP data confirmed that Elite Stonetech made one shipment of artificial stone to the United States in September 2018 and made regular shipments of stone slabs to the United States from November 2019 through December 2023.⁵⁴ It is suspicious that Elite Stonetech sent a shipment of [No.] kg of artificial stone to the United States before it was registered as being operational with the Thai government on September 5, 2019.⁵⁵ In addition, CBP found that Elite Stonetech was dissolved as a company, according to the Thai government, on November 27, 2023.⁵⁶ CBP data also indicated that Cosmos East switched from importing QSP from Elite Stonetech to importing QSP from [Name] following the dissolution of Elite Stonetech.⁵⁷ Although Cosmos East provided some evidence that [Name] has production facilities in Thailand, the switch from buying from one company, Elite Stonetech for which evidence on the record casts serious doubts about its history or even capacity to produce QSP in Thailand to another one, whose photographs⁵⁸ on Google Maps do not show a large or robust operation, provided reasonable suspicion that the QSP imported was not produced in Thailand.

[Name]

According to the Thai government, [Name] is owed solely by three Chinese nationals.⁵⁹ CBP found via a LinkedIn profile that the "boss" of [Name], named [Name], is located in Fujian, China.⁶⁰ [Name] is a director and key

⁵³ See 19 C.F.R. § 163.6(a) requiring importers to produce the supporting documentation to CBP upon request. This means by written, oral, or electronic notice, any Customs officer may require the production of entry records by any person listed in § 163.2(a) who is required under this part to maintain such records, even if the entry records were required at the time of entry. Any oral demand for entry records shall be followed by a written or electronic demand. The entry records shall be produced within 30 calendar days of receipt of the demand or within any shorter period as Customs may prescribe when the entry records are required in connection with a determination regarding the admissibility or release of merchandise. Should any person from whom Customs has demanded entry records encounter a problem in timely complying with the demand, such person may submit a written or electronic request to Customs for approval of a specific additional period of time in which to produce the records; the request must be received by Customs before the applicable due date for production of the records and must include an explanation of the circumstances giving rise to the request...

⁵⁴ See CBP May 30, 2024, Memo to the File, "Supplemental Information to the Administrative Record of EAPA Consolidated Case 7888" (CBP's May 30th Memo).

⁵⁵ *Id.* attachment 2 and 4.

⁵⁶ *Id.* attachment 4.

⁵⁷ *Id.* attachment 6.

⁵⁸ *Id.* attachment 5. [Name]'s website photos don't seem to line up with the empty looking warehouse facility shown on Google maps. The Google maps facility looks overrun by vegetation and does not show a lot of activity. The photos in Cosmos East's CF-28 response to entry 9638 look like [Name] is operating inside a new factory that is clean.

⁵⁹ *Id.* attachment 5 at 413.

⁶⁰ *Id.* at attachment 5 at 373.

principle⁶¹ of [Name] and [Name]).⁶² Furthermore, [Name] is the owner of [Names], which manufactures QSP in Fujian, China.⁶³ [Name] did not appear to have its own website, but its Facebook page links to [Name], also a Chinese QSP manufacturer.⁶⁴ Based on a comparison of photos obtained from Facebook and [Name] website of the inside of its factory and warehouse, including photos of the entire floor of the factory and close up shots of certain machinery and inventory, it appears that [Name] is affiliated with, or operates under the name of [Name], and that the two companies share one factory.⁶⁵ Therefore, based on all of the above, [Name] is affiliated with Chinese QSP producers [Names].⁶⁶

Based on the totality of evidence on the record, CBP found that there was reasonable suspicion that the Importers' entries of QSP from Elite Stonetech were not produced in Thailand. This was supported by the Allegations establishing that no such operating factory existed in July 2023, well before the company's official dissolution later that year, and that Elite Stonetech shipped artificial stone to the United States in 2018, before it became a legal company in Thailand. This was also supported by the lack of fulsome information about Elite Stonetech in Global Source's CF-28 response, and the fact that U.S. Atlanta and Cosmos West did not provide CF-28 responses regarding their imports from Elite Stonetech. Similarly, Cosmos East provided no evidence that the production documents provided corresponded to the shipped QSP. [Name] also had a known affiliation with two Chinese manufacturers of QSP, further raising reasonable suspicion of evasion.

II. Interim Measures & Post Interim Measures

Interim Measures

After evaluating the information on the record, on June 17, 2024, CBP issued its Notice of Initiation and Interim Measures.⁶⁷ TRLED determined that there was reasonable suspicion that the Importers and Cosmos East evaded the *AD/CVD Orders* by claiming that the QSP imported into the United States was of Thai origin when it was actually of Chinese origin.⁶⁸ TRLED findings were based on the record evidence at the time, including the information provided in the Allegations, and the fact the CF-28s responses for entries 0781, 8025, 9638, 3499, 5420, 8676 and 9554 did not include information that indicated that the QSP was produced in Thailand during the period of investigation (POI).⁶⁹

⁶¹ *Id.* at attachment 5 at 374.

⁶² *Id.* at attachment 5 at 374-379.

⁶³ *Id.*

⁶⁴ *Id.* at attachment 5 at 380-397.

⁶⁵ *Id.* at attachment 5 at 398-410.

⁶⁶ *Id.*

⁶⁷ See CBP's Notice titled, "Notice of Initiation of Investigation and Interim Measures - EAPA Consolidated Case 7888" (NOI), dated June 17, 2024.

⁶⁸ *Id.*

⁶⁹ In accordance with 19 C.F.R. § 165.2, the entries covered by this investigation are those entered for consumption, or withdrawn from warehouse for consumption, from February 16, 2023, through the pendency of this investigation.

Requests for Information (RFI) ⁷⁰

On June 26, 2024, CBP issued Requests for Information (RFI) to the Importers⁷¹ and Cosmos East,⁷² and on June 28, 2024, CBP issued RFIs to Elite Stonetech⁷³ and Just Stone.⁷⁴ The RFIs asked for an explanation of corporate structure, accounting and financial practices, and detailed sales and production information, including raw material purchases, inventories, a list and description of all significant inputs used to produce QSP, and monthly inventory movement schedules for the most significant direct raw material inputs.⁷⁵ The RFIs are intended to identify the actual manufacturer and/or supplier of the goods, as well as to validate the QSP production capacity for sale to the United States during the POI.

Cosmos East's RFI Response

On August 22, 2024, CBP timely received an RFI response from Cosmos East's counsel stating that [Name] is the owner and president of Cosmos East.⁷⁶ The response stated that Cosmos East is as an importer and distributor of slabs of granite, marble, quartzite, quartz and the like, and provided the requested information about its corporate structure and sales processes, its imports from Just Stone and Supplier3, factory visit information, and payment and purchasing information.⁷⁷ Cosmos East stated that it had expanded its business to 12 locations, and those locations were consolidated into a single legal entity with ownership distributed among the members until 2015.⁷⁸ In the same year, disagreements among the members led to lawsuits, and eventually the companies separated from each other. During the legal separation procedure, [Name] completely relinquished his ownership in [Names].⁷⁹ However, [Name] retained ownership in [Name] and Cosmos East.⁸⁰ In addition, [Noun] acquired

⁷⁰ Note: CBP also issued questions to [Name] (Supplier3) on July 16, 2024, to try to assess whether Elite Stonetech had any relationship with Supplier3. CBP did not receive a timely response to its questions. On December 18, 2024, Supplier3 attempted to submit a response to CBP, but CBP rejected the response as untimely and did not place it on the record because it was filed after the voluntary new factual information deadline had passed (September 27, 2024) and after CBP had performed verifications for this investigation (November 2024).

⁷¹ See CBP's RFI questionnaires titled, "EAPA Cons. 7888 - Request for Information from Cosmos Granite (West), LLC.," "EAPA Cons. Case Number 7888 - Request for Information from Global Source & Supply, Inc.," and "EAPA Cons. 7888 - Request for Information from U.S. Atlanta International, Inc.," dated June 26, 2024.

⁷² See CBP's RFI questionnaire titled, "EAPA Cons. 7888 - Request for Information from Cosmos Granite (East) Marble, LLC.," dated June 26, 2024.

⁷³ See CBP's RFI questionnaire titled, "EAPA Cons. 7888 - Request for Information from Elite Stonetech Co., Ltd.," dated June 28, 2024.

⁷⁴ See CBP's RFI questionnaire titled, "EAPA Cons. Case No. 7888 - Request for Information from Just Stone Industry (Thailand) Co., Ltd.," dated June 28, 2024.

⁷⁵ See RFI questionnaires for all four importers and the Thai suppliers.

⁷⁶ See Cosmos East RFI response titled, "Investigation - EAPA Case 7888 Investigation of Quartz Surface Products from China: Response to the Initial Request for Information for Cosmos Granite (East), LLC.," dated August 22, 2024, at 3.

⁷⁷ *Id.*

⁷⁸ *Id.*

⁷⁹ *Id.*

⁸⁰ *Id.*

two additional new companies, [[Names](#)].⁸¹ Additionally, “in mid-2019, all members of different entities involving [[Name](#)] collaborated to acquire the failing company International Granite & Marble Corp....,” which later became known as [[Name](#)].⁸²

On September 12, 2024,⁸³ CBP issued a Supplemental (Supp.) RFI to Cosmos East and received Cosmos East’s response on September 26, 2024.⁸⁴ Prior to 2019, all 12 “Cosmos” location operating companies were controlled by two holding companies.⁸⁵ According to the Supp. RFI response, the dissolution of two holding companies under which all the “Cosmos” operating companies were then operating was settled during a bench trial in early 2019.⁸⁶ During the settlement, [[Name and Family Member](#)] executed the necessary documents to each acquire, from the two holding companies, interest in new “spin off” companies.⁸⁷ In short, [[Name](#)] received, directly or indirectly, a [No.] interest in [[Name](#)] and a [No.] interest in [[Name](#)], while [[Name](#)] received, directly or indirectly, a [No.] interest in both [[Name](#)] and [[Name](#)].⁸⁸

U.S. Atlanta’s RFI Response

On August 29, 2024, CBP received a limited RFI response from U.S. Atlanta, where U.S. Atlanta mainly said it is not involved any manufacture, sales, nor distribution activity of QSP in the United States.⁸⁹ The response also stated that U.S. Atlanta is a third-party logistics provider.⁹⁰ Furthermore, per the response, the company [[Name and website](#)] is a California corporation, incorporated on August 11, 2011, and it acts as a customs broker.⁹¹ [[Name and Stakeholder](#)].⁹²

U.S. Atlanta failed to provide the majority of information that CBP requested, such as production information to support that the QSP was manufactured in Thailand, information related to corporate structure and/or related companies, an organizational chart, operating structure, production facilities, shareholders, labor records, and sales/accounting/financial practices. U.S.

⁸¹ *Id.* at 7. [[Name](#)], an older entity involved in the import and distribution of QSP, ceased operations in 2020 following an asset purchase and merger. It now exists solely to collect outstanding debts from customers and to resolve a legal issue among the company’s members.

⁸² *Id.*

⁸³ See CBP’s Supp. RFI questionnaire titled, “EAPA Cons. 7888 – Supplemental Request for Information for Cosmos Granite (East) Marble, LLC,” dated September 12, 2024.

⁸⁴ See Cosmo East’s Supp. RFI response titled, “Investigation - EAPA Case 7888 Investigation of Quartz Surface Products from China: Response to the Supplemental Request for Information for Cosmos Granite (East), LLC,” dated September 26, 2024.

⁸⁵ *Id.*

⁸⁶ *Id.* at 3-4.

⁸⁷ *Id.*

⁸⁸ *Id.*

⁸⁹ See U.S. Atlanta’s RFI response titled, “Investigation - EAPA Case 7888 Investigation of Quartz Surface from China: U.S. Atlanta International, Inc. (“U.S. Atlanta”) Response to Request for Information Our Reference: 15263.0220001,” dated August 29, 2024 (U.S. Atlanta RFI Response).

⁹⁰ *Id.*

⁹¹ *Id.* at 3.

⁹² *Id.*

Atlanta clarified that it was approached by [Name Location], to provide importing service for [Name]’s shipments.⁹³ [Names] told U.S. Atlanta that he had visited the exporter facility in Thailand and ensured that “all products are not QSP and not subject to ACD/CVD {sic}.”⁹⁴ So, U.S. Atlanta [Fee] to be listed as the importer of record.⁹⁵ CBP noted that the company provided no supporting evidence for these statements. In addition, if U.S. Atlanta’s statements are true, they imply that U.S. Atlanta did not have a financial interest in the imports and may not have had a right to make entry for these imports.

On September 13, 2024, CBP issued a Supp. RFI to U.S. Atlanta for additional information relevant to this investigation.⁹⁶ However, U.S. Atlanta did not respond.

*Just Stone’s RFI Response*⁹⁷

On August 2, 2024, after granting an extension, CBP timely received Just Stone’s RFI response that was issued on June 28, 2024.⁹⁸ Their response indicated Just Stone was established in Thailand on October 12, 2021, and the physical address is 24/5-6 Moo 4 Bueng Sriracha, Chonburi, Thailand and that its initial shareholders were Mr. Xiangdong HUANG, Ms. Shanni SU, and Ms. Meirong YAN.⁹⁹ Just Stone said it has not changed its corporate name, management, or physical address since its establishment.¹⁰⁰ Just Stone clarified that it “does not have any business dealings with [Name] relating to the development, production, sale and/or distribution of the covered merchandise to the United States.”¹⁰¹

The RFI response stated that Mr. Xiangdong HUANG, is also a Director at [Name] and he spends most of his time abroad to develop customers for Just Stone; he is not substantively involved in the daily operation and management of [Name].¹⁰² Similarly, the RFI response stated that Ms. Meirong Yan spends most of her time at Just Stone to supervise the company’s financial activities.¹⁰³ “She is also an investor of [Name] but does not heavily participate in [Name] operation and management.”¹⁰⁴ The response goes on to state that “Just Stone and [Name] have distinct [Action]. Just Stone produces QSP in Thailand and [Action

⁹³ *Id.*

⁹⁴ *Id.*

⁹⁵ *Id.*

⁹⁶ See CBP’s Supp RFI questionnaire titled, “EAPA Cons. 7888 – Supplemental Request for Information from U.S. Atlanta International, Inc.,” dated September 13, 2024.

⁹⁷ CBP noted that Just Stone’s name was not bracketed in the RFI response, thus the company name will be unbracketed from here on.

⁹⁸ See Just Stone’s RFI response titled, “EAPA CASE NUMBER 7888: Response to the Request for Information for Just Stone Industry (Thailand) Co., Ltd.,” dated August 2, 2024.

⁹⁹ *Id.*

¹⁰⁰ *Id.*

¹⁰¹ *Id.*

¹⁰² *Id.*

¹⁰³ *Id.*

¹⁰⁴ *Id.*

to destination].¹⁰⁵ [Name] produces QSP in China and does not [Action].¹⁰⁶

With respect to [Name], the RFI response stated that “Just Stone, upon internal review, confirmed that Just Stone has never had any business dealings with [Name].”¹⁰⁷ The RFI response stated that Just Stone checked with [Name], which informed Just Stone that [Name] once approached [Name] to [Action Plan].¹⁰⁸ [Name] also clarified that, in the RFI response, “contrary to what was alleged in the NOI, [Name] does not “share a factory” with [Name], nor did it set up the Facebook profile that linked to [Name].”¹⁰⁹

On September 13, 2024, CBP issued a Supp RFI to Just Stone, and on October 7, 2024, CBP timely received the response, after granting three extensions; the response contained a sales and production reconciliation and included additional information about Just Stone’s corporate structure and accounting/financial practices.¹¹⁰

Non-Responsive Parties: U.S. Importers—Cosmos West and Global Source and Thai Supplier—Elite Stonetech

CBP did not receive any RFI responses from Cosmo West,¹¹¹ Global Source,¹¹² or Elite Stonetech,¹¹³ despite CBP’s requests for information and the opportunities provided to respond to the RFI questionnaires.

On July 9, 2024, CBP received a letter from Global Source’s counsel requesting CBP remove Global Source from this EAPA investigation and claiming that Global Source was not properly served the CF-28.¹¹⁴ Global Source said it had no record of receiving two CF-28 requests from CBP; therefore, Global Source only responded to CBP’s request for entry 5420.¹¹⁵ Global

¹⁰⁵ *Id.*

¹⁰⁶ *Id.*

¹⁰⁷ *Id.*

¹⁰⁸ *Id.*

¹⁰⁹ *Id.*

¹¹⁰ See Just Stone’s Supplemental RFI response titled, “EAPA CASE NUMBER 7888: Response to the Supplemental Request for Information for Just Stone Industry (Thailand) Co., Ltd.,” dated October 7, 2024. CBP granted three extensions of time for Just Stone’s Supp. RFI response titled, “EAPA Consolidated Case No. 7888: Response to Just Stone Industry (Thailand) Co.’s Request for an Extension to Submit its Supp. RFI Response,” dated September 20, 2024, “EAPA Consolidated Case No. 7888: Response to Just Stone Industry (Thailand) Co.’s 2nd Deadline Extension to Submit its Supp. RFI Response,” dated September 27, 2024, and “EAPA Consolidated Case No. 7888: Response to Just Stone Industry (Thailand) Co.’s 3rd Deadline Extension to Submit its Supp. RFI Response,” dated October 1, 2024.

¹¹¹ See CBP’s RFI questionnaire titled, “EAPA Cons. 7888 - Request for Information from Cosmos Granite (West), LLC.,” dated June 26, 2024.

¹¹² See CBP’s RFI questionnaire titled, “EAPA Cons. Case Number 7888 - Request for Information from Global Source & Supply, Inc.,” dated June 26, 2024.

¹¹³ See CBP’s email titled, “EAPA Cons. 7888: CBP Request for Information,” dated June 28, 2024.

¹¹⁴ *Id.* at 2.

¹¹⁵ See response from Global Source titled, “EAPA Cons. Case No. 7888: Global Source Request to Be Removed From Investigation (July 9th Global Source Letter),” dated July 9, 2024.

Source apparently missed the request for documents for entry 9554, which was included on the CF-28 request for 5420, which CBP issued on April 3, 2024.¹¹⁶ On June 26, 2024, after implementation of interim measures and issuing the NOI, by issuing an RFI questionnaire, CBP gave Global Source another opportunity to provide information to establish the country of origin of the QSP.¹¹⁷ However, Global Source failed to respond to CBP's RFI. Instead, in its July 9, 2024 letter requesting CBP remove Global Source from this EAPA investigation, Global Source provided a letter from one of Elite Stonetech owners, [Name], who stated that, of the nine entries mentioned in the NOI, Elite Stonetech only shipped QSP for the two entries to Global Source (entries 5420 and 9554).¹¹⁸ According to [Name] statement, Elite Stonetech did not ship to Cosmo East for entries 9638, 8025, 0781 and Cosmo West for entry 3499.¹¹⁹ [Name] also stated that Elite Stonetech never did business with U.S. Atlanta and had no business relationship with Kung Fu Stone nor had even heard of the Kung Fu company.¹²⁰ [Name] said he believed Kung Fu Stone was one of the companies who [Action

].¹²¹ [Name] asserted that Elite Stonetech did not ship any shipments before it was established in September 2019 and mentioned that Elite Stonetech ceased manufacturing and shipping in April 2023 and was officially closed in November 2023.¹²² [Name] asserted that Elite Stonetech's name was stolen when the company was in the process of being established.¹²³ Multiple people and/or companies used Elite Stonetech's name for shipping (because Elite Stonetech had a facility in Thailand) without Elite Stonetech's knowledge and permission.¹²⁴ Not knowing Elite Stonetech was closed in 2023, some of them continued to claim Elite Stonetech as the shipper on shipping documents even in 2024.¹²⁵

CBP notes Cosmo West, Global Source, and U.S. Atlanta all declared Elite Stonetech as a manufacturer on its entries of QSP to the United States. Even though Elite Stonetech ceased business, it apparently was able to provide a response to Global Source about its role in these imports. However, Elite Stonetech did not directly answer any of CBP's RFI questions, and CBP was therefore unable to verify the reliability of the response to Global Source. Nevertheless, [Name] statement suggested that there were several QSP shipments not produced by Elite Stonetech that used the name Elite Stonetech when shipped to the United States,¹²⁶ indicating that companies in China used its name to ship QSP to the United States and to claim the QSP was from Thailand

Voluntary New Factual Information

¹¹⁶ Note: Entry 9554 was listed on the bottom of page 2 of the same CF-28 form for entry 5420.

¹¹⁷ See CBP's RFI questionnaire titled, "EAPA Cons. Case Number 7888 - Request for Information from Global Source & Supply, Inc.," dated June 26, 2024.

¹¹⁸ See July 9th Global Source Letter at Attachment 2.

¹¹⁹ *Id.*

¹²⁰ *Id.*

¹²¹ *Id.*

¹²² *Id.*

¹²³ *Id.*

¹²⁴ *Id.*

¹²⁵ *Id.*

¹²⁶ *Id.*

CBP did not receive any voluntary new factual information from the Importers.

On-Site Verification – Just Stone

From November 11-14, 2024, CBP performed a site verification of Just Stone in Thailand to verify the information submitted to CBP during this investigation.¹²⁷ During the verification at the Just Stone facility, CBP compared the documents provided to CBP in Just Stone’s RFI responses to Just Stone’s original documents at verification, and observed Just Stone’s production process, including watching live QSP production on-site and viewing raw materials and QSP inventory.¹²⁸ Moreover, CBP interviewed company officials about Just Stone’s organization, operations, and financial transactions.

For this investigation, CBP verified that Just Stone had the production capacity to produce the QSP it shipped to Cosmo East during the POI.

Written Arguments

On October 9, 2024, CBP notified parties that the deadline for written arguments was extended until further notice.¹²⁹ On January 27, 2025, CBP notified parties that the new deadline for written arguments was January 30, 2025, and the deadline for responses to such written arguments would be 15 calendar days thereafter.¹³⁰ On January 27, 2025, counsel representing both Cosmos East and U.S. Atlanta requested an extension to submit written arguments.¹³¹ On January 29, 2025, CBP granted a partial extension to submit the written arguments to February 6, 2025, for all parties.¹³² On February 6, 2025, Cosmos East timely submitted written arguments indicating that substantial evidence shows that Cosmos East and Cosmos West are separate companies, that Cosmos East did not enter through evasion merchandise covered by the *AD/CVD Orders* during the POI, and that Supplier3 should have been given more opportunities to respond to CBP’s questions.¹³³

III. Analysis as to Evasion

Under 19 U.S.C. § 1517(c)(1)(A), to reach a determination as to evasion, CBP must “make a determination, based on substantial evidence, with respect to whether such covered merchandise entered into the customs territory of the United States through evasion.” Evasion is defined as

¹²⁷ See CBP’s verification report titled, “U.S. Customs and Border Protection, Office of Trade On-Site Verification Report, Enforce and Protect Act Consolidated case: 7888,” dated January 15, 2025 (Just Stone Verification Report).

¹²⁸ *Id.*

¹²⁹ See CBP’s email titled, “EAPA Cons 7888: CBP Extension of Written Arguments Deadline,” dated October 9, 2024.

¹³⁰ See CBP’s email titled, “EAPA Cons. 7888: Written Arguments Deadline,” dated January 27, 2025.

¹³¹ See Cosmos East request titled, “Investigation - EAPA Case 7888 Cosmos Granite (East), LLC (“Cosmos Granite”) Request for Extension of Written Argument Our Reference: 15230.0220001,” dated January 27, 2025.

¹³² See CBP’s email titled, “EAPA Cons. 7888, Written Arguments Deadline,” dated January 29, 2025.

¹³³ See Cosmo East written arguments titled. “Investigation - EAPA Case 7888 Cosmos Granite (East), LLC (“Cosmos East”) - Written Arguments Our Reference: 15230.0220001” (Cosmos East Written Arguments), dated February 6, 2025.

“the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the covered merchandise.”¹³⁴

Application of Adverse Inferences to Cosmos West, Global Source, U.S. Atlanta, and Elite Stonetech

In making an evasion determination, 19 U.S.C. § 1517(c)(2) provides CBP the authority to “collect such additional information as is necessary to make the determination through such methods as the Commissioner considers appropriate, including by ... issuing a questionnaire with respect to such covered merchandise to” the Importer alleged to have engaged in evasion and the foreign producer of the covered merchandise. Further, 19 U.S.C. § 1517(c)(3) discusses the use of adverse inferences by CBP, stating that if CBP finds that a party to the investigation “has failed to cooperate by not acting to the best of the party or person’s ability to comply with a request for information, the Commissioner may, in making a determination {of evasion}, use an inference that is adverse to the interests of that party or person in selecting from among the facts otherwise available to make the determination” and the EAPA regulations at 19 C.F.R. § 165.6(a) have a similar statement.¹³⁵ Thus, both the statute and implementing regulations are clear that CBP may apply an adverse inference to a party that does not, to the best of its ability, respond to CBP’s RFIs.

As discussed in detail above, CBP attempted to obtain fulsome information from all parties involved in the investigation; however, Cosmos West and Elite Stonetech completely failed to cooperate to the best of their abilities by not responding at all to CBP’s RFIs. Meanwhile, Global Source and U.S. Atlanta did not provide fulsome responses to CBP that would allow CBP to determine the actual origin of the goods that they imported to the United States. Global Source did not respond at all to the requested information or documentation in CBP’s RFI, but rather, it sent a letter asking to be removed from the investigation that included an attachment supposedly from the owner of Elite Stonetech stating Elite Stonetech made all the entries for Global Source, but not the entries for Cosmos West, Cosmos East, or U.S. Atlanta, as listed in the NOI.¹³⁶ U.S. Atlanta sent an “RFI response” that merely explained that U.S. Atlanta is not involved in any manufacture, sales, nor distribution activity of QSP, but rather it is a third-party logistics provider.¹³⁷ It stated it [[Action](#)] as importer of record for these shipments of QSP.¹³⁸ Both Global Source and U.S. Atlanta failed to provide the vast majority of information that CBP requested in its RFIs,¹³⁹ such as production information to support that the QSP was manufactured in Thailand, information related to corporate structure

¹³⁴ See 19 C.F.R. § 165.1.

¹³⁵ See 19 U.S.C. § 1517(c)(3). See also 19 C.F.R. § 165.6(a).

¹³⁶ See July 9th Global Source Letter at Attachment 2. See also NOI.

¹³⁷ See U.S. Atlanta RFI Response.

¹³⁸ *Id.*

¹³⁹ *Id.* See also July 9th Global Source Letter at Attachment 2.

and/or related companies, an organizational chart, operating structure, production facilities, shareholders, labor records, and sales/accounting/financial practices.

As a result of Cosmos West's, Global Source's, U.S. Atlanta's, and Elite Stonetech's failures to cooperate in this investigation to the best of their abilities, CBP was unable to perform the necessary analysis to determine whether their imports/exports of QSP entered the United States through evasion. In addition, the record does not contain information to corroborate Cosmos West's, Global Source's, and U.S. Atlanta's claims regarding country of origin.

Because Cosmos West, Global Source, U.S. Atlanta, and Elite Stonetech all failed to cooperate and comply to the best of their abilities with the RFIs, in accordance with 19 U.S.C. § 1517(c)(3)(A) and 19 C.F.R. § 165.6, CBP is drawing inferences adverse to the interests of the four companies from the facts otherwise available on the administrative record. The facts on the record that CBP selects to weigh favorably in light of these parties' failures to respond are:

- 1) Elite Stonetech was not an operating QSP production facility in Thailand, according to the Allegation's [[Source](#)] potentially as early as [[Time Range](#)].¹⁴⁰ In supporting Elite Stonetech's production capabilities, the Alleger [[Source Action and Validation](#)].¹⁴¹ [[Name status and Name Location](#)].¹⁴²
- 2) The Alleger provided evidence of a link between Elite Stonetech and a Chinese QSP manufacturer, named Kung Fu Stone, based in Xiamen province, China.¹⁴³ Kung Fu Stone publicly published on its website statements implying that its products or products from other Chinese QSP producers can be purchased from Elite Stonetech in Thailand. This is combined with the fact that Elite Stonetech is no longer an [[Name Status](#)].¹⁴⁴
- 3) CBP research that corroborated unusual export activities by Elite Stonetech—mainly entries made in their name when they were not operational.¹⁴⁵

There is a significant lack of information on the record suggesting the Importers' imports from Elite Stonetech were actually produced in Thailand. However, for the reasons explained here, this information is of limited reliability. Global Source's CF-28 response for entry 5420 provides some alternate documents about Thailand being the country of origin for this entry; however, CBP finds that the documents are unreliable.¹⁴⁶ Global Source's CF-28 response for this entry was incomplete because Global Source failed to provide entry documents, including a commercial invoice, packing list, or bill of lading.¹⁴⁷ Also, the CF-28 specifically requested "a

¹⁴⁰ See Allegations at 8-9 and Exhibit 6.

¹⁴¹ *Id.*

¹⁴² *Id.*

¹⁴³ *Id.* at 10-11 and Exhibit 11.

¹⁴⁴ *Id.* at Exhibit 6. See also July 9th Global Source Letter at Attachment 2.

¹⁴⁵ See CBP's May 30th Memo.

¹⁴⁶ See Entry 5420 CF-28 Response.

¹⁴⁷ *Id.*

demonstration of how the manufacturer ties the raw material to the finished product.”¹⁴⁸

Although Global Source provided certain production documents, it did not provide any evidence tying those documents to the entry imported into the United States nor to the raw material invoices provided.¹⁴⁹ Therefore, CBP was unable to verify from record documents that the QSP exported to the United States for this entry was actually produced in Thailand

In addition, Elite Stonetech’s lack of direct participation in this investigation means that CBP was unable to verify Global Source’s statements from an owner of Elite Stonetech.¹⁵⁰ As mentioned above, if the statements have any veracity, even Elite Stonetech’s owner admitted that there were QSP shipments using Elite Stonetech’s company name exported to the United States that were not made by Elite Stonetech.¹⁵¹

Therefore, for the reasons discussed above, CBP is drawing adverse inferences and determining, based on facts from the Allegations, corroborated by CBP research, that all Elite Stonetech’s QSP imported by Cosmos West, Global Source, and U.S. Atlanta during the POI misrepresented the country of origin of their QSP imports by claiming Thailand, rather than China, as the country of origin. Consequently, the required cash deposits were not collected on the merchandise as of the onset of this investigation. As a result, Cosmos West’s, Global Source’s, and U.S. Atlanta’s entries subject to this EAPA investigation will be subject to the China-wide entity rate for the *AD/CVD Orders*.¹⁵²

Lack of Evidence of Evasion by Cosmos East

The totality of information contained in the administrative record demonstrates a lack of substantial evidence that Cosmos East evaded the *AD/CVD Orders* by importing Chinese-origin QSP transshipped through Thailand. As noted above, Cosmos East provided timely responses to CBP’s RFIs and SRFIs, and provided answers, as applicable, to the questions contained therein. In addition, there is no evidence on the record that Cosmos East imported QSP from Elite Stonetech during the POI. In addition, supplier Just Stone Thailand was found at verification to be capable of producing the QSP it sold to Cosmos East during the POI.¹⁵³

IV. Actions Taken Pursuant to the Negative Determination as to Evasion

Based on an examination of the record, CBP determines that there is not substantial evidence to establish that Cosmos East entered merchandise covered by the *AD/CVD Orders* into the customs territory of the United States through evasion as defined by 19 U.S.C. § 1517(a)(5)(A). In consideration of CBP’s determination that there is not substantial evidence that Cosmos East entered covered merchandise into the customs territory of the United States through evasion during the POI, CBP will reverse any interim actions taken with respect to entries subject to this investigation and liquidate the entries, as required under 19 C.F.R. § 165.27(c). CBP’s negative

¹⁴⁸ *Id.*

¹⁴⁹ *Id.*

¹⁵⁰ See July 9th Global Source Letter.

¹⁵¹ *Id.*

¹⁵² The rate applicable to these entries are the China-wide entity rate for the *AD/CVD Orders* on QSP from China, unless otherwise specified by the Department of Commerce.

¹⁵³ See Just Stone Verification Report.

determination as to evasion in this EAPA investigation does not preclude CBP or other agencies from pursuing other enforcement actions or penalties as may be appropriate.

V. Actions Taken Pursuant to the Affirmative Determination as to Evasion

In light of CBP's determination that substantial evidence demonstrates that Cosmos West, Global Source, and U.S. Atlanta entered covered merchandise into the customs territory of the United States through evasion, and pursuant to 19 U.S.C. § 1517(d) and 19 C.F.R. § 165.28, CBP will suspend or continue to suspend the entries covered by this investigation, until instructed to liquidate. For those entries previously extended in accordance with Interim Measures, CBP will rate adjust and change those entries to type 03 and continue suspension until instructed to liquidate these entries. CBP may also evaluate the Importers' continuous bonds in accordance with CBP's policies. None of the above actions precludes CBP or other agencies from pursuing additional enforcement actions or penalties.

Sincerely,

A handwritten signature in blue ink, appearing to read "Victoria Cho".

Victoria Cho
Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
Office of Trade